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Turnover limit for Composition Levy for CGST - Manufacturers of Certain Goods not eligible for benefit of Composition Scheme u/s 10(1) - 08/2017 - Central GST (CGST)

Superseded vide Notification No. 14/2019 – Central Tax dated 07-03-2019

GOVERNMENT OF INDIA

MINISTRY OF FINANCE

(Department of Revenue)

Notification No. 8/2017-Central Tax

New Delhi, the 27th June, 2017

G.S.R. 647 (E).- In exercise of the powers conferred under the proviso to sub-section (1) of section 10 of the Central Goods and Services Tax Act, 2017 (12 of 2017) (hereinafter referred to as the said Act), the Central Government, on the recommendations of the Council, hereby prescribes that an eligible registered person, whose aggregate turnover in the preceding financial year did not exceed [1][one crore rupees] , may opt to pay, in lieu of the central tax payable by him, [5][an amount of tax calculated at the rate specified in rule 7 of the Central Goods and Services Tax Rules, 2017:]

Provided that the aggregate turnover in the preceding financial year shall be [2][seventy-five lakh rupees] in the case of an eligible registered person, registered under section 25 of the said Act, in any following States, namely: -

(i) Arunachal Pradesh,

(ii) Assam,

(iii) Manipur,

(iv) Meghalaya,

(v) Mizoram,

(vi) Nagaland,

(vii) Sikkim,

(viii) Tripura,

(ix) Himachal Pradesh:

Provided further that the registered person shall not be eligible to opt for composition levy under sub-section (1) of section 10 of the said Act if such person is a manufacturer of the goods, the description of which is specified in column (3) of the Table below and falling under the tariff item, sub-heading, heading or Chapter, as the case may be, as specified in the corresponding entry in column (2) of the said Table:-

TABLE

S. No.	Tariff item, sub-heading, heading or Chapter	Description
(1)	(2)	(3)
1.	2105 00 00	Ice cream and other edible ice, whether or not containing cocoa.
2.	2106 90 20	Pan masala
3.	24	All goods, i.e. Tobacco and manufactured tobacco substitutes

Explanation. –

(1) In this Table, “tariff item”, “sub-heading”, “heading” and “chapter” shall mean respectively a tariff item, sub-heading, heading and chapter as specified in the First Schedule to the Customs Tariff Act, 1975 (51 of 1975).

(2) The rules for the interpretation of the First Schedule to the said Customs Tariff Act, 1975 (51 of 1975), including the Section and Chapter Notes and the General Explanatory Notes of the First Schedule shall, so far as may be, apply to the interpretation of this notification.

[F.No.354/117/2017-TRU]

(Mohit Tewari)

Under Secretary to the Government of India

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Notes:-

1. Substituted vide notification no. 46/2017 dated 13-10-2017, before it was read as, “seventy-five lakh rupees”

2. Substituted vide notification no. 46/2017 dated 13-10-2017, before it was read as, “fifty lakh rupees”

3. Substituted vide Notification No. 1/2018 Dated 01-01-2018, before it was read as, “one per cent.”

4. Substituted vide Notification No. 1/2018 Dated 01-01-2018, before it was read as, “half per cent. of the turnover”

5. Substituted vide Notification No. 05/2019-Central Tax dated 29-01- 2019 before it was read as

"an amount calculated at the rate of,—

(i) [3][half per cent.] of the turnover in State in case of a manufacturer,

(ii) two and a half per cent. of the turnover in State in case of persons engaged in making supplies referred to in clause (b) of paragraph 6 of Schedule II of the said Act, and

(iii) [4][half per cent. of the turnover of taxable supplies of goods] of the turnover in State in case of other suppliers:"